

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4-Economic Stability (ES)
	Part No./Name	O-DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (DSNAP)
	Section No./Name	O-700-DSNAP CASE MAINTENANCE
	Document No./Name	O-740-DSNAP Fair Hearings
	Effective Date	March 1, 2012

I. STATEMENT OF POLICY

DSNAP applicants may request an agency conference or a fair hearing if they feel that the eligibility decision made on their DSNAP application is incorrect. * The applicant may withdraw his request for a fair hearing at any time prior to the hearing. **

II. PROCEDURES

* The Department (or worker) must send form [OFS 5W](#) to the DCFS Appeals Unit notifying them of a client's withdrawal only if a Summary of Evidence has been submitted to the Appeals Unit and the claimant withdraws his request for a fair hearing. If the withdrawal was in the form of a written statement, a copy of the client's statement must be attached to the form [OFS 5W](#). If the client verbally withdraws his fair hearing request, a form [OFS 5FHW](#) (Fair Hearing Withdrawal Notice) must be sent to the client to confirm the withdrawal and a copy of the form must be filed in the case record. The client has ten days from the receipt of the notice to request reinstatement of the fair hearing. **

Households that did not apply for the DSNAP for any reason do not have a right to a fair hearing. This includes households who were unaware of the DSNAP or were not able to reach the site during the application period. Refer to Chapter 4, [C-1400-SNAP](#) for more information regarding fair hearings.

III. FORMS AND INSTRUCTIONS

*

[OFS 5W](#) Form/Instructions – Notification of Withdrawal of Fair Hearing

[OFS 5FHW](#) Form/Instructions - Fair Hearing Withdrawal Notice

IV. REFERENCES

7CFR 273.15

[LAC 67:III.Subpart 1 General Administrative Procedures, Chapter 3, Hearings](#) **